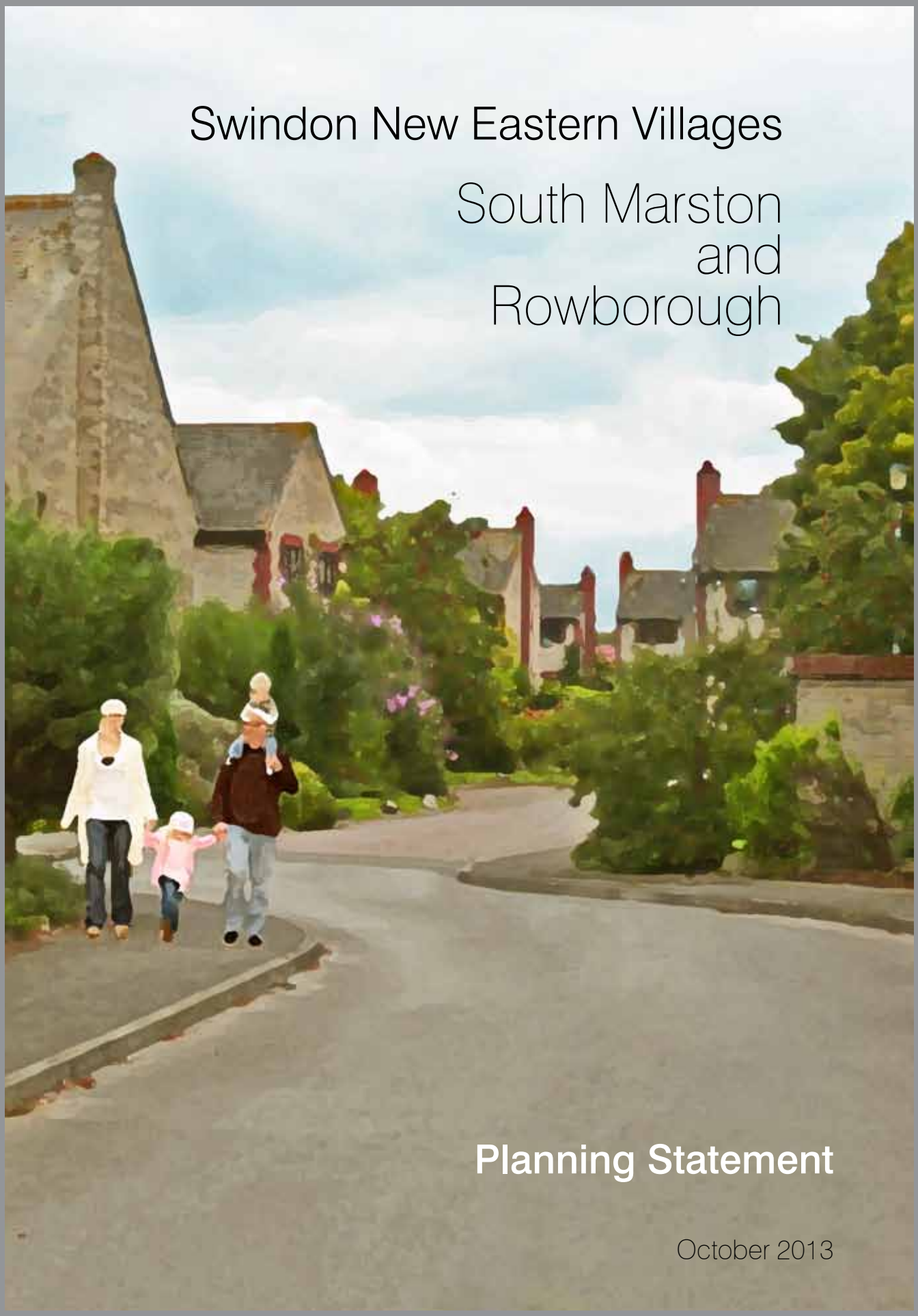
Swindon New Eastern Villages

South Marston and Rowborough



Planning Statement

October 2013

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Appendix 1: Letter from Network Rail 2 October 2013

1.0 INTRODUCTION

1.1 This Planning Statement is prepared on behalf of Hallam Land Management Limited, Hannick Homes & Developments Limited and Taylor Wimpey UK Limited (HHT) in support of an outline planning application (OPA) for a residential led, mixed use development on land east of Swindon and north of A420. The purpose of the Planning Statement is to describe and assess the proposals against adopted and emerging planning policy and in this context draw conclusions in relation to the suitability of the proposals.

1.2 In accordance with Swindon Borough Council's (SBC) Revised Validation Checklist, Development Control Guidance Note (November 2010), the Planning Statement includes reference to affordable housing provision, an open space assessment and a draft heads of terms. The Planning Statement has been prepared by David Lock Associates.

Application Proposals

1.3 The Pre-submission Swindon Borough Local Plan (2012) allocates a strategic extension site to the east of Swindon for circa 8,000 dwellings together with associated retail, employment, education and leisure uses. This OPA comprises Phase 1 of the strategic extension site to the east of Swindon, known as the New Eastern Villages (NEV), with all matters reserved except access for:

- up to 2,380 residential dwellings (class C3);
- up to 2,500 sqm of employment floor space (class B1);
- mixed use space for local retail and other services comprising up to 2,500 sqm of Use Class A1; with provision also and in addition for A2, A3, A4, and A5 uses.
- two form entry primary school (class D1);
- community and sport buildings (classes D1 and D2) ;
- sheltered accommodation (class C2) ;
- green infrastructure including formal pitches, informal open space, landscape areas and children's play spaces;
- sustainable urban drainage systems including balancing ponds and drainage channels;
- connections to the surrounding highway, footpath and bridleway network;
- infrastructure and utilities provision including car parking; and

- ground remodelling, engineering works and demolition.

1.4 The proposals aim to establish a mixed use, sustainable urban extension that will form part of the wider NEV that supports the overall growth objectives for Swindon, in general compliance with policies NC3 and RA3 within the emerging Swindon Borough Local Plan 2026.

1.5 The application proposals are detailed more fully in section 3 of this Planning Statement.

Applicants and Land Ownership

1.6 The application is submitted by Hallam Land Management Limited, Hannick Homes & Developments Limited and Taylor Wimpey UK Limited (HHT). HHT own or control the freehold of the application site with the exception of highway land and the railway.

1.7 The land controlled is agricultural land and is unconstrained in terms of previous use or legal arrangements. Some of the land is already in the freehold ownership of HHT. Agreements to purchase the remainder of the controlled land are exercisable on grant of outline planning permission. There are no restrictions on title for the land controlled that will impinge in any way on the planning or implementation of the development. In relation to the railway, the applicants have agreed commercial terms with Network Rail in respect of the grant of the easement for the bridge under the Great Western Main Line (see appendix 1).

1.8 HHT have committed substantial resources to the development of the NEV proposals and are well versed in the implementation of major strategic developments.

1.9 Hallam Land Management is the strategic land arm of Henry Boot Plc. Taylor Wimpey is also one of the leading developers in the country. Hallam Land Management invests in the provision of advance infrastructure on strategic sites, releasing development parcels to be developed in accordance with agreed design criteria. Hallam Land Management has led consortia which, with Barratt and Taylor Wimpey respectively, have recently delivered the following major schemes in the South West in difficult economic circumstances:

- North East Bridgwater – 2,000 dwellings and 110,000 m^2 of employment floorspace – commenced October 2010 with 400 new homes due to be complete by the summer of 2012.
- Cranbrook new community, east of Exeter – 2,900 dwellings and a new town centre – commenced summer 2011, with houses first offered to the market in Spring 2012. Over 400 dwellings have been commenced within the first year of house building. There are now some 250 occupations.

1.10 Likewise Hannick Homes have been successful in bringing forward complex schemes.

1.11 Such partnership arrangements have shown themselves demonstrably able to deliver substantial investment both in infrastructure and in the timely construction of new housing to meet housing need, even in times of economic difficulty.

Applicants Approach – Town Developer Role

1.12 The delivery of Proposed Development, and indeed the NEV as a whole, will require the establishment of effective arrangements for carrying out development in an effectively co-ordinated and strongly managed programme from start to completion. This will cover all the planning and development processes and projects.

1.13 This is in effect the role of the "town developer". It is the model that is adopted in respect of other major developments that the partners have current experience in implementing – at Cranbrook outside Exeter and at North East Bridgwater, for instance.

1.14 A fundamental characteristic is that this is a long term role. Working in close consultation with local planning authorities, the developer will be responsible, through its land controls, for securing the implementation of orderly and high quality development in accordance with a master plan and vision for the development.

1.15 The developer will co-ordinate, fund and construct where necessary the infrastructure required by the development and discharge responsibility for all related planning obligations (such as schools, affordable housing, public open space, highways and public transport).

1.16 Implicit in this delivery model is an understanding of the need for partnership. The experience of HHT elsewhere brings a demonstrable capacity for working through

strong partnership and in particular an ability to generate funding arrangements within such partnership working to ensure rates of delivery of housing and infrastructure. In Swindon, the basis for effective partnership working in the delivery of infrastructure is already in place and includes the Implementation and Monitoring Plan accompanying the Local Plan and such stakeholders as the investment partnership: "Forward Swindon".

Description of Development

1.17 The description of development for which outline planning permission is sought is as follows:

"Outline Planning Permission, for a sustainable urban extension to the east of Swindon and north of the A420 of up to 2,380 dwellings together with a mixed use local centre and mixed use areas [including A1 retail up to 2,500 sq metres, services (A2), restaurants, pubs and takeaways (A3, A4, A5), business uses (B1) up to 2,500 sq metres, residential]; community uses (D1); sheltered accommodation; primary school; green infrastructure including formal (including playing fields) and informal open space, landscape and amenity space; changing and sports facilities (including D2); sustainable drainage systems; highway, cycle and pedestrian routes; car parking; infrastructure (including utilities); engineering works including ground remodelling; demolition, site reclamation and removal of structures; the formation of new accesses from the A420, Old Vicarage Lane and Thornhill Road".

Planning Application Documentation

1.18 The outline planning application is submitted with a full suite of supporting information, in conformity with SBC's validation checklist for outline applications with some but not all matters reserved (November 2010):

- covering letter;
- planning application form;
- planning application fee;
- application drawings (site location plan, development framework plan, points of access);
- supporting drawings (illustrative master plan);
- Design and Access Statement;
- Statement of Community Involvement;

- Planning Statement (incorporating open space assessment, affordable housing provision and draft S106 Heads of Terms);
- Environmental Statement (including text, figures and appendices and non-technical summary);
- Transport Assessment (appendix 5.1 of the ES);
- Travel Plan Framework (appendix 5.2 of the ES);
- Green Infrastructure Framework – Guiding Principles (appendix 8.5 of the ES);
- Arboricultural Survey and Assessment (appendix 9.9 of the ES);
- Flood Risk Assessment (appendix 12.1 of the ES);
- Phase 1 Geo-environmental Desk Study (appendix 13.1 of the ES);and
- Sustainability Report.

Principle, Context and Timing of Application

1.19 The outline planning application is submitted in the context of the Government's clear commitment to growth and development, now enshrined within the National Planning Policy Framework (NPPF). That the NPPF provides a principal context for the consideration of the application proposals is emphasised by the absence of an up to date local development plan document for Swindon. The NPPF espouses the presumption in favour of sustainable development as the golden thread running through the planning system.

1.20 The NPPF introduces a presumption in favour of sustainable development and confirms that "*housing applications should be considered in the context of the presumption in favour of sustainable development*" (para 49).

1.21 A fundamental dimension to the promotion of sustainable development in the NPPF is the requirement for local planning authorities to provide the supply of housing required to meet the needs of present and future generations. It is a "core planning principle" to "*proactively drive and support sustainable economic development to deliver the homes, business and industrial units, infrastructure and thriving local places that the country needs"* (para 17). To this end it is a core planning principle also to "*boost significantly the supply of housing*" (para 47) and to deliver a wide choice of new homes including, specifically, homes to meet affordable housing needs (para 50).

1.22 The applicants are committed to the early delivery of the site for development. There are no constraints to prevent the development proposals delivering new homes (both private and affordable) at the earliest opportunity, thereby contributing fundamentally

to the achievement of the core objectives of the NPPF. It is anticipated that the grant of planning permission for the proposals would allow an early commencement on site.

1.23 Paragraph 14 of the NPPF provides the specific guidance as to how the presumption in favour of sustainable development is to apply in decision making on applications. Proposals in accord with the development plan are to be approved without delay. Where the development plan is silent or out of date then permission should also be granted unless "*any adverse impacts of doing so would significantly and demonstrably outweigh the benefits when assessed against the policies in this Framework when taken as a whole*".

1.24 The Swindon Local Plan is out of date. No demonstrable and significant adverse impacts exist to set against the considerable benefits arising from the development and the weight to be attached to the presumption in favour of sustainable development and the provision of new homes. Indeed the application site is entirely suitable and appropriate for the development proposed.

1.25 Emerging local planning policy provides an equally supportive context, providing a positive framework within which to plan the development and one that has set the objectives that have influenced the evolution of the proposals.

1.26 The principle of an easterly expansion of Swindon as the most suitable location to deliver housing to meet the ever expanding local need within Swindon, is deeply rooted. Swindon Principal Urban Area Study (2003), which in turn informed the then review of the Wiltshire and Swindon Structure Plan to 2016, identified the area east of the A419(T) as the most suitable location for the town's future large scale growth. That Study equally informed the draft Regional Spatial Strategy for the South West through to 2026.

1.27 The principle of the NEV is articulated within the Council's East of Swindon Evidence Base Update (March 2011) which sets out the principle that east, is the most appropriate direction for Swindon to develop into the longer term and that large scale expansion of the town in that direction is preferable to more dispersed growth around its periphery.

1.28 The *Swindon Borough Local Plan 2026: Submission Document (2013)* was submitted to SoS for independent examination on 28th June 2013. Policy NC3 of the draft plan allocates the Site as part of a mixed use urban extension of about 8,000

new homes with associated retail, employment, education and leisure uses to the east of Swindon, known as the New Eastern Villages. The Application Site comprises part of this allocation, comprising solely of land north of the A420, which includes the allocation at Rowborough and the expansion of South Marston. Draft policy RA3 provides further policy and design context for the expansion of South Marston village.

1.29 The housing trajectory which supports the draft Local Plan identifies a build-out period of 15 years or more to deliver the NEV, with the completions within 2014/15. The evidence base supports a phased and co-ordinated approach to development east of Swindon, commencing with a first phase north of the A420.

1.30 The proposed development represents a scheme that is entirely deliverable, unconstrained by landownership or any other major constraints. To facilitate early commencement of development, the application package is supported by a comprehensive set of documentation which demonstrates an approach that secures delivery of the necessary infrastructure required to support the proposed development without comprising the principle nor delivery of the remainder of the New Eastern villages phases, proposed south of the A420.

Relationship of OPA to wider development of New Eastern Villages

1.31 This OPA seeks permission for up to 2,380 dwellings comprising Phase 1 of the 8,000 dwellings allocated through the emerging Swindon Local Plan, to the east of Swindon, known as the New Eastern Villages (NEV).

1.32 The draft New Eastern Villages SPD for the site and for South Marston (and the East of Swindon Evidence Base Update), provide the necessary confidence as to the satisfactory relationship between the application proposals and the whole of the NEV, which requires that each phase of development must have the infrastructure to support itself and must avoid any further constraint being placed on subsequent phases.

1.33 The application is submitted within this context and includes details of all key infrastructure elements required by the development, demonstrating an intent for early commencement of the development and defining an approach that ensures a self-sustaining form of development, avoiding further constraints being placed on subsequent phases of the NEV.

1.34 The application proposals are timely and also capable of early implementation. The evidence base that underpins the submission of this OPA and upon which significant weight should be placed when considering the application is deeply rooted. The proposals are consistent with the policy framework for the expansion of South Marston and Rowborough and the delivery of the NEV as a whole.

2.0 SITE LOCATION AND CONTEXT

Location

2.1 The site location plan identifies the land to which the outline planning application relates. The application site is approximately 162 hectares in size.

2.2 The Site is located east of Swindon. The village of South Marston defines the northern extent of the Site and provides a residential context. The southern edge of South Marston village is defined by residential properties, South Marston primary school the Mercure South Marston Hotel and Leisure Club, as well as an industrial/employment area off Thornhill Road. To the north of South Marston are the villages of Stanton Fitzwarren and Sevenhampton.

2.3 Immediately west of Thornhill Road and Highworth Road are the major employment areas of the Honda works, South Marston Industrial Estate and Keypoint which include a number of large employment buildings and distribution warehouses.

2.4 The southern boundary to the Site is generally formed by the Great Western mainline railway which provides rail access between London and Bristol, and the A420 which runs alongside and to the south of the railway. The A420 forms an important corridor within the local road network and commences from Swindon and heads generally in a north easterly direction extending into Oxford.

2.5 Further west lies the A419 a trunk route giving access from the M4 around the east of Swindon and north to Cirencester. The M4 motorway caters for east – west movements and provides the major link between South West England / Wales to the west and Reading / London to the east.

2.6 The eastern part of the site, known as Rowborough, comprises largely agricultural land and Rowborough Farm, a single farm dwelling and collection of agricultural buildings. The eastern boundary is formed by agricultural field boundaries, beyond which lies Nightingale Wood, a publically accessible woodland. The River Cole lies to the west of Nightingale Wood.

2.7 Existing access to the site is gained from Old Vicarage Lane, which sits centrally within the site and Thornhill Road at the western extent. Both provide direct access

onto A420. From there convenient access is provided onto the A419 and the M4 motorway.

Physical Characteristics

2.8 The site is currently in agricultural use and largely comprises pasture for cattle grazing. There is also some arable land. The field pattern is typical of the wider landscape with fields being generally irregular in shape and predominantly small scale in character, although some are bigger to the east near Rowborough Farm

Landscape

2.9 Hedgerows and ditches help define the field pattern. Some of the hedges contain mature trees. As well as some wet ditches associated with hedgelines, there are pond features within the Site, between Manor Farm and the linear residential development along Manor Park, which is populated by a dense tree group. A second pond is located at the eastern part of South Marston, south west of the Mercure Hotel. There is also a pond located in the north west part of Rowborough.

2.10 There are a number of Public rights of way (PROW) that cross the site, mostly in a north-south direction between South Marston and the A420. A Public Bridleway heads into Nightingale Wood via Rowborough Farm.

2.11 There are two watercourses, the northern tributary of the River Cole and the South Marston Brook that feeds into it from the west. Each are significant landscape features around Rowborough bisecting the site east-west then continuing northwards towards and to the north of South Marston village. Visibility of the site is varied with the mature hedgerows which line the roads around South Marston generally restricting views into the site, especially along the western edge. Views across the site open up along Old Vicarage Lane moving northwards towards the core of the village. Views of the site are most prominent from Nightingale Lane which provides southerly views over Rowborough.

2.12 The site is not subject to any statutory landscape quality designations. There are five County Wildlife Sites (CWS's) within 1km of the site which include River Cole, River Cole Meadow and the Pits north of South Marston.

Topography

2.13 The topography of the village and its immediate surroundings are relatively flat in character. The site and varies between approximately 88 and 100m Above Ordnance Datum with the higher part of the site at Nightingale Wood to the east. The Site gently falls to towards the Marston Brook and the River Cole.

Settlement Pattern

2.14 South Marston is generally a linear settlement, with a number of more modern cul-de-sac developments branching off from the main street. There are a number of outlying farmsteads which will have a close relationship with the Proposed Development. There are a small collection of dwellings and agricultural buildings associated with Manor Farm, which occupies a fairly central position within South Marston. These are accessed by a track which runs between Old Vicarage Lane and Thornhill Road and from a track leading off Thornhill Road. The track also provides access to a single dwelling that lies east of Manor Farm, known as Red House.

2.15 South Marston Farm, accessed off Thornhill Road, is located between the application site and the railway line to the south.

2.16 Within the Rowborough part of the site, Rowborough Lane provides access to a semi-detached pair of dwellings known as Rowborough Cottages, Brooklands and Rowborough Farm which comprises a single farm dwelling and collection of agricultural buildings. Rowborough Lane continues in a northeast direction, across the site. Rowborough is characterised by larger sized fields, largely in arable production, with some tree plantations. This includes the non-indigenous Christmas Tree plantation to the north of Rowborough Farm. It is envisaged that the agricultural outbuildings associated with Rowbrough Farm will be demolished.

Historic Environment

2.17 There are no Conservation Areas, Registered Parks or Gardens, or Scheduled Monuments located within the site. There are four listed buildings in close proximity to the application site, these are Priory Farmhouse, Manor Farmhouse, The Red House and Nightingale Farmhouse, all listed Grade II.

2.18 The Proposals Map within the Pre-submission Local Plan identifies an area identified as a significant unscheduled archaeological feature centred on South Marston Farm and identified primarily on the basis of its medieval features.

2.19 The potential effects on heritage assets have been considered at the masterplanning stage. The Proposed Development has been designed to enable the preservation *in situ* of the majority of the area interpreted as a late prehistoric/Roman settlement between Manor and South Marston Farms. Mitigation of impacts on such non-designated heritage assets will comprise archaeological evaluation, and where necessary and/or appropriate, excavation and recording of any archaeological remains.

Ecology

2.20 The site is not subject to any ecological designations. The ecological assessment detailed within Chapter 9 of the ES identifies the ecological habitats on the site and sets out the outcome of a comprehensive series of ecological surveys undertaken over many years including the most recent survey seasons.

2.21 The proposed layout has taken into account habitats and features of value at an early stage and seeks to retain and enhance ecological features of value, as far as practicable, through the Green Infrastructure Framework (GIF).

2.22 The proposed GIF equates to more than some 70ha or over 40% of dedicated GI, where enhancements to specific habitats will be delivered by the proposed development through the creation of further areas of planting and natural spaces within a wider network of green infrastructure. This will mitigate for the minor loss of existing habitats and provide long term biodiversity benefits.

3.0 DESCRIPTION OF THE PROPOSALS

Physical Design and layout

3.1 The application proposals comprise a residential led scheme together with areas of mixed use, comprising: community; employment; education; local retail uses; and formal and informal open space provision.

3.2 Consistent with the emerging policy approach, the proposed development comprises of two elements, the expansion of South Marston and a development of a new neighbouring community to the east, at Rowborough. Each area will have its own distinct identity and strong landscaping will define and shape the development of Rowborough and South Marston as individual communities. There will however be clear relationships between the two communities and with the wider Eastern Villages, south of the A420.

3.3 The development layout and structure as a whole has been influenced by the landscape context and topographical features of the site. The arrangement of land parcels and their associated uses, form and type of open space and route ways are based on the established physical features within the site.

3.4 Development will be comprised of walkable residential neighbourhoods around distinct character areas. Each neighbourhood benefits from access to key areas of formal and informal open space.

Residential Development

3.5 The residential component of the scheme comprises some 1,800 dwellings at Rowborough at an average density of around 40 dwellings per hectare, and some 580 dwellings comprising the expansion of South Marston at an average density of around 30 dwellings per hectare. However overall, the development will adopt the approach of graded densities with higher densities in core locations of the layout and lower densities on the edge. This will provide variety and character with a range of street scenes, plot designs and house types.

3.6 Development of both sites will include a mix of 1-5 bedroom properties, including terraces, semi detached and detached properties. Houses will be predominantly 2 storey in height, but with some 2.5 and perhaps 3 storey dwellings.

3.7 The approach to design and layout is described in more detail in the Design and Access Statement that accompanies the application.

3.8 The proposed development will deliver a proportion of affordable housing as part of the housing mix, alongside market housing. Draft policy HA2 seeks a target of 30% affordable homes in the Local Plan area and Draft local pan policy RA3 sets out a level of affordable housing expectation for South Marston of no more than 20%.

3.9 The proposals will include up to 30% affordable housing at Rowborough and up to 20% affordable housing at South Marston. The amount and mix of affordable housing will be the subject of negotiation and discussions with SBC and agreed in the light of the wider requirement for infrastructure delivery and other planning and design objectives.

Neighbourhood Mixed Use Centres

3.10 A mixed use neighbourhood centre is located at the heart of Rowborough, with a further mixed use area located in the south eastern part of Rowborough.

3.11 Planning permission is sought for up to 2,500 sqm of small scale employment (class B1) and mixed use space for local retail and other services comprising up to 2,500 sqm of Use Class A1 and with provision also and in addition for A2, A3, A4, and A5 uses. The precise uses will be determined at the reserved matters stage, but could include, for example, a small convenience store and other shops for 'top up' shopping, take-away, offices for start up local businesses, and cafes and food and drink outlets.

3.12 The Neighbourhood centre and primary school are co located to generate a focus of activity for Rowborough, accessibly located on a main through street(s) to include appropriate space for bus stops, parking and cycle storage. This centre will provide the focus for day-to-day facilities for the local community, allowing for local 'top-up' shopping and opportunities for social interaction.

3.13 Provision is also made for recreation/community use at South Marston – adjacent to the proposed/existing playing fields areas. It is recognised that proposals for education and community uses are being developed in respect of the South Marston primary school and the adjoining land owned by the Parish Council. The proposals within this application are intended to be complementary to such proposals and to

provide flexibility for the delivery of appropriate community facilities for the existing and new community at South Marston.

Education Provision

3.14 The proposed development includes provision for a primary school (age 5-11) on site at Rowborough. The site of approximately 2.2 hectares makes generous provision to accommodate a two form entry (420-place) school. Some pre-school provision is likely to be associated with this new school but it may not necessarily be directly managed by the school.

3.15 The detailed design of the school and the mechanism for its delivery will be subject to discussion and agreement with Swindon Borough Council, but it is expected that this will be a single storey building(s) with parking areas, hard and soft play areas, sports playing fields and habitat areas. The design principle is to locate the school building at the south west corner of the of the school site, so as to form an active frontage within the Neighbourhood Centre. The playing fields will be located at the eastern part of the school site, extending out to the areas of planned informal open space.

3.16 A 1FE extension to the South Marston Village school is also planned and is likely to accommodate a further 210 places for the South Marston Area. The applicants anticipate making contributions towards the provision of additional school places, envisaged to be through the expansion of the existing school.

Access and Movement

3.17 The Transport Assessment (TA) provided at appendix 5.1 of the ES sets out the transport issues relating to the proposed development and indentifies the necessary interventions to mitigate the anticipated transport effects and to improve accessibility and safety for all modes of travel.

3.18 As part of the evidence base prepared in support of the New Eastern Villages allocation, Brookbanks Consulting worked collaboratively with Swindon Borough Council (SBC) and the Highways Agency (HA) to reach agreement on highways matters, including trip generation forecasts, traffic modelling methodology and results, and the production of a package of mitigation measures to minimise the transport impacts of the development proposals. This robust evidence base underpins the TA submitted in support of the application.

3.19 A vital element of the Transport Assessment is the consideration of potential cumulative impacts on traffic that result not only from committed schemes, but also allocations to include the wider development of the New Eastern Villages. The traffic scenarios modelled were agreed through discussions with SBC and HA. These were identified as Phase 1A which included a potential expansion of the foodstore south of the A420 and provision of employment land to the south in accordance with the proposals in the emerging Swindon Local Plan. The second additional test, identified as Phase 2, assessed the full New Eastern Villages development (namely 8,000 dwellings) as per the emerging Local Plan allocation. A robust approach has therefore been adopted which ensures that the application proposals take full account of future development in the area in the short and longer term

3.20 The impact of traffic generated by the development has been assessed using the Saturn, Paramics and LinSig traffic models, as agreed with Swindon Borough Council and the Highways Agency and set out in the accompanying TA.

3.21 The delivery of a residential development has the potential to increase traffic levels in the local road network and as such a clear transport strategy has been developed including specific junction interventions. For the NEV as a whole this will require the phased implementation of transport measures in parallel with the progressive development of the NEV.

3.22 The transport mitigation measures identified as appropriate to the application proposals for 2380 dwellings north of the A420, comprise a number of highway improvements at various locations of the A420 and A419 and in South Marston which include:

- **A420/Old Vicarage** Lane - Shuttle signals to operate at the railway underbridge on Old Vicarage Lane (see 1335-HL-054 A in Appendix 5.1 of the ES) linked to a signal controlled junction between Old Vicarage Lane and A420, together with a change of priorities leading into the development on the eastern side of Old Vicarage Lane with Old Vicarage Lane becoming the minor road (see 1335-HL-057 C in appendix 5.1 of the ES);

- **New access onto A420 -** New signal controlled junction at the east end of the application site, under the railway, to provide access from the A420 (see 1335-HL-10 B in appendix 5.1 of the ES);

- **Police HQ Signals** - retain existing signal layout on A420 with minor changes to the signal timings;

- **Gablecross Roundabout** – localised widening on approach arms (see 1335-HL-051 in appendix 5.1 of the ES);

- **White Hart interchange** - partial signalisation of the eastern side of the interchange (see 1335-HL-050 in appendix 5.1 of the ES).

3.23 The TA confirms that the results of the modelling have not highlighted a location, nor impact, that cannot be appropriately mitigated. The proposals are underpinned by a deliverable transport strategy, supported by the work undertaken on behalf of both the Borough Council as local highway authority and the Highways Agency as authority for the A419 and M4, to secure the early implementation of the Proposed Development without requiring, or in any way fettering, the progressive implementation of the wider transport strategy for the NEV as a whole.

Access Strategy for Application Proposals

3.24 The intention of the access strategy for the Proposed Development is to maintain the A420 as the primary east-west corridor and providing direct and ready connection to the A420 at Thornhill Road, Old Vicarage Lane, and from the new access towards the eastern end of the development thereby minimising the traffic routing through the proposed development and the existing South Marston village.

3.25 The selection of a roundabout junction on Thornhill Road provides a direct link into the development to reduce any need to travel through South Marston. The access into the development from Old Vicarage Lane includes the alteration of the priority such that traffic is discouraged from South Marston.

3.26 Consideration has also been given to the wider objectives in relation to transport set out in the Draft South Marston SPD. The objective of a 20 MPH speed limit throughout the village is supported in principle and in practice through the subsequent design of most streets within the development areas in accordance with such speeds. Rowborough and Nightingale Lanes are retained.

3.27 The traffic modelling work confirms that traffic generated from within Rowborough will employ the access(es) to the A420 to the south rather than find its way to Thornhill

Road and Gablecross roundabout via Thornhill Road. The proposed link between Old Vicarage Lane and Thornhill Road is therefore demonstrated not to form a southern bypass role for the South Marston area. Indeed the link has been designed with Manual for Streets philosophy in mind and will be experienced as a street within the landscape setting. The modelling further confirms that with the improvements proposed, the highway junctions in the immediate environs of the development will operate satisfactorily following development.

3.28 More generally, the likely impact of the Proposed Development on traffic conditions in South Marston, including at Pound Corner, has been fully appraised. This assessment indicates that the Proposed Development would not materially increase traffic flows through the village or impede access to the wider road network for existing residents, taking into account the improvement proposed to junctions on the A420 and for the reasons set out above. The aspiration in Policy RA3 of the emerging Local Plan to secure traffic management measures in the expanded and existing village (for instance at Pound Corner) are also capable of being supported through the application proposals.

Sustainable Transport

3.29 The proposed development will deliver a series of sustainable transport options providing viable and realistic alternatives to use of the private car. A high quality, frequent and reliable public transport system is important to support and enhance sustainable travel patterns. Central to the public transport component of the transport strategy will be the expansion of current bus services and their rerouting into the site.

3.30 The bus service 65 is a route managed by Stagecoach and operates between Swindon and Faringdon, Monday to Saturday. The first bus leaves Swindon Bus Station at 10:50 calling at South Marston at 11:03. For trips towards Swindon, the first bus calls at South Marston at 10:26 with a journey time of 15 minutes. This service operates typically four times daily.

3.31 The Route 66 is managed by Stagecoach and operates along the A420 between Swindon and Faringdon, Monday to Sunday. The first bus leaves Swindon Bus Station at 05:40 and typically operates on a half hourly frequency. The journey time to Oxford is 1 hour and 15 minutes.

Travel Plan

3.32 The Travel Plan Framework provided at appendix 5.2 of the ES, has been prepared to support the application, which provides measures that encourage more sustainable patterns of movement and travel by working in partnership with local schools and businesses. The Travel Plan proposes a target for the site which will reduce the modal share by single occupancy vehicles by 10%.

Footpaths and Cycleways

3.33 The masterplan for the site includes numerous walking routes within the development to provide a comprehensive route network. Highway crossing points will be designed to cater for all types of pedestrian users with the routes lit where appropriate.

3.34 The walking paths will connect the individual housing blocks into the main route through the site that will ensure full connectively and route choice throughout the development.

3.35 Provision will also be made to encourage cycling within the development in particular through the design of streets which are attractive to cyclists as well as pedestrians and which manage vehicular speeds.

3.36 The onsite network will connect into the external walking and cycling networks that includes the PRoW network. The predominant walking and cycling desire line towards Swindon is to be fully incorporated into the links from the development.

Parking

3.37 Parking is expected to be provided taking into account the Council's adopted parking standards as set out in Appendix 11 of the *Swindon Borough Local Plan 2011*. The parking provided will take account of such standards although the final provision will reflect the mix of units and the design principles within each character area.

Green Infrastructure and Public Open Space

3.38 An inter-connected, multi-functional network of landscape and green infrastructure is proposed. This would be based on existing environmental assets within the area,

including watercourses (notably the South Marston Brook), woodlands and community woodlands (including Nightingale Wood), and key hedgerows and trees.

3.39 Within this network, environmental enhancement, outdoor recreation, pedestrian, cycle and bridleway access, flood management, surface water attenuation and allotments will be provided for. The network will integrate with green corridors running east/west across the site, particularly between areas of community woodland, and provide visual and physical linkages to the adjacent countryside.

3.40 In addition, the landscape and green infrastructure framework will also help maintain the separate identities of South Marston and Rowborough, particularly around the tributary valley of the River Cole and South Marston Brook.

Open Space Assessment

3.41 The proposed development provides a considerable amount of green space for play, recreation and walking/cycling and accords with the open space requirements as set out at appendix 4 of the emerging Local Plan. The figures are based on the housing numbers proposed as part of the outline application (1800 for Rowborough and 580 for South Marston) multiplied by the latest average household size for Swindon (2.35 persons/household). This equates to a population of 4,230 for Rowborough and 1,363 for South Marston (total 5,593).

Category of Open Space	Draft Swindon Borough Plan 2026	Requirements	Proposed
Open Space (overall)	3.2 ha / 1000 population	17.9 ha *South Marston: 3.8 ha* *Rowborough: 14.1 ha*	73 ha approx *South Marston: 27 ha* *Rowborough: 46 ha*
Children / Teen Play Areas	0.3 Ha /1000 population (to include NEAP, LEAP, and LLA (Local Landscape Area))	1.7 ha *South Marston: 0.4 ha* *Rowborough: 1.3 ha*	1.7 ha (Included as part of overall general recreation areas) *South Marston: 0.4ha* *Rowborough: 1.3 ha*
Outdoor Sports Facilities	1.6 Hectares /1000 population (of which 1.2 Hectares /1000 population are	8.9 ha (6.7 ha formal pitches) *South Marston: 1.9 ha (1.4 ha formal pitches)*	9.5 ha *South Marston:2.5 ha*

	formal pitches)	*Rowborough: 7.1 ha (5.08 ha formal pitches)*	*Rowborough:7.0 ha*
General Recreation Areas	1 ha / 1000 population (of which 0.5 ha/1000 should be suitable for children's informal play)	5.6 ha (2.8 ha children's informal play) *South Marston: 1.2 ha (0.6 ha children's informal play)* *Rowborough: 4.4 ha (2.2 ha children's informal play)*	62 ha approx *South Marston: 24 ha* *Rowborough: 38 ha*
Allotments	0.3 ha / 1000 population	1.7 ha *South Marston: 0.4 ha* *Rowborough: 1.3 ha*	1.7 ha *South Marston: 0.4* *Rowborough: 1.3 ha*

3.42 The provision of playing fields within Rowborough is split within two areas ensuring good accessibility to all residents throughout Rowborough. The two formal open space areas are linked by parcels of open space proposed for more informal use. The playing fields at South Marston are located at the northern edge of the development, i.e. at the heart of the expanded South Marston, adjacent to the primary school and its recreation ground. There will be opportunities for shared use of recreation facilities with the school, which would further enhance the value of the provision made.

3.43 Located throughout the Proposed Development will be individual play areas providing each with equipped play areas within walking distance of the proposed development parcels.

3.44 The proposed development also makes provision for allotments in South Marston and Rowborough in order to create community focus and convenient access to open space. The proposed open space and green infrastructure will also enhance the ecological quality of the site by providing new and connecting existing wildlife habitats and space for local recreation for future residents and users of the Site.

3.45 The timing of the delivery of these facilities is important, in particular regarding the formal play and recreational facilities, and can be secured through the Section 106 legal agreement.

GI Strategy

3.46 The provision and approach to Green Infrastructure (GI) is in accordance with 'A Green Infrastructure Strategy for Swindon 2010-2026' and the initiatives of the Great Western Community Forest. It also accords with established guidance from Natural England in terms of accessibility to greenspace for new communities and delivering multifunctional landscapes.

3.47 The Green Infrastructure Framework – Guiding Principles, provided at appendix 8.5 of the ES demonstrates extensive GI which extends over some 70ha or over 40% of the site and includes the following components:

1) The creation of a large multifunctional landscape habitat within the Proposed Development. Although this will be perceived as a single extensive and connected area of greenspace offering a variety of habitats, it is, separated into three areas to aid explanation (see the accompanying Green Infrastructure Framework (GIF) - Guiding Principles, for locations):

   - **Zone 1: South Marston Park.** This is located to the west of Old Vicarage Lane. It encompasses retained trees, hedges and rights of way, together with new habitat creation in the form of new broadleaved planting of woodland copses, hedges and trees, and grassland meadows and SUDS (basins and swales). The park will include new sports pitches (alongside the existing recreation ground) and areas of equipped play.

   - **Zone 2: Rowborough Park.** This lies to the east of Old Vicarage Lane and is broadly defined by South Marston Brook. It encompasses the Brook and its associated tree cover and floodplain, as well as retained trees, hedgerows and rights of way. It also includes new sports pitches, equipped play areas and habitat creation in the form of new broadleaved planting, SUDS and grassland meadows.

   - **Zone 3: Nightingale Park.** This lies in the south eastern part of the Site and comprises new sports pitches, allotments and habitat creation which include SUDS.

2) "Greenways" and "Pocket Parks". These are defined corridors or areas of natural greenspace that essentially connect with the three parks. They contain existing hedgerows and trees and deliver opportunities for habitat creation in the form of new planting, as well providing for informal recreation to include walking, cycling and natural play.

3) Retained mature trees within the development parcels, which provide an opportunity in which to deliver feature spaces within the detailed layout.

4) New street trees and pockets of incidental greenspace and planting within development parcels, in addition to private gardens.

3.48 The design approach near South Marston has been carefully developed to minimise the impact of the Proposed Development on the existing community. The approach adopted includes the use of new sports pitches and greenspace as part of Zone 1: South Marston Park. This will provides a sensitive interface between the new built form and the existing edge of village and at the same time establish an active area of accessible greenspace for both communities.

Connections to and Relationship to the NEV and Swindon Town Centre

3.49 The strategic A420 road corridor divides the northern and southern elements of the NEV. It is important that the proposed development can be well connected to the development islands that make up the rest of the NEV as well as to Swindon town centre. The development proposes an element of small scale retail and community use only within Rowborough local centre, but residents will rely on the district centre at the NEV for a wider range of retail, complementary and community uses, and Swindon for their higher order services, shops and the evening economy. Consequently, clear links from the development to the NEV and Swindon Town Centre are required.

3.50 The development will ensure the provision of clear and accessible links between Rowborough and South Marston and between the development and Swindon town. A network for footpaths and cycleways will connect to existing routes within and adjoining the site.

Sustainable Design and Renewable Energy

3.51 Sustainability has been an important part of the planning application proposals. The site has been designed to give people the opportunity to choose a healthier, more sustainable lifestyle; for instance reducing the need to travel, establishing sustainable drainage systems and creating a place that engenders social connections.

3.52 The Applicants are committed to delivering a sustainable development, a component of which will be the level of sustainable design and energy conservation incorporated into the scheme. All dwellings will achieve Level 3 of the Code for Sustainable Homes 2010 which will require reductions in CO_2 to be achieved through energy efficiency measures that may include fabric improvements and/or low carbon / renewable technologies. A range of methods to achieve Code Level 3 are considered in the Sustainability Report.

Drainage

3.53 In accordance with the NPPF, which requires allocation and planning of development to be considered against a risk based search sequence, a detailed understanding of the extent of the areas of flood risk has been obtained and the watercourses haven the subject of detailed flood plain modelling.

3.54 An assessment of the fluvial flood risk demonstrates the majority of the site to lie within Flood Zone 1; being an area of Low Probability of flooding, and the Flood Risk Assessment (FRA) concludes that the application site is suitable for the proposed development in the context of the NPPF sequential test.

3.55 No built development is located within the River Cole and South Marston Brook floodplain, other than essential infrastructure crossing the floodplain.

3.56 The drainage strategy is set out in the FRA (see appendix 12.1 of the ES) which accompanies the application and identifies no prohibitive engineering constraints in developing the proposed site for residential use in a sustainable manner.

3.57 Due to the introduction of impermeable surfaces by the Proposed Development, appropriate drainage arrangements are required to manage surface water arising from the Site. A range of sustainable urban drainage solutions will be incorporated into both the built and green environments. SuDS (Sustainable Drainage Systems) will be implemented in order to reduce flood risk, minimise pollution and provide

landscape and wildlife benefits. Attenuation SuDS will be required to manage surface water runoff to no more than current rates. The drainage strategy set out in the Flood Risk Assessment would result in flows from the site being reduced to about 65.6% below Greenfield rates.

3.58 As infiltration capacity is variable across the site, a mixture of infiltration and attenuation SuDS will be required to manage surface water to current standards.

Demolition

3.59 The Proposed Development anticipates the demolition of buildings including a number of agricultural buildings associated with Rowborough Farm, as an element of the local centre proposals at Rowborough.

4.0 PLANNING POLICY CONTEXT

National Planning Policy

National Planning Policy Framework (2012)

4.1 The Government's commitment to delivery of sustainable development is now enshrined in the Localism Act and National Planning Policy Framework. Local Planning Authorities are duty bound to prepare positive plans to encourage sustainable development that meets the area's need for homes, jobs and open space.

4.2 The National Planning Policy Framework provides a clear decision taking framework, setting out in paragraph 14 the approach to the determination of planning applications the centrepiece of which is the Presumption in Favour of Sustainable Development. In the absence of an up to date development plan policy, permission is to be granted unless there are adverse impacts that demonstrably and significantly outweigh the benefits of development.

4.3 In the context of a time-expired or out of date local plan consideration needs to be given to the balance of adverse impacts against benefits assessed against the policies of the NPPF as a whole.

4.4 It is the policies in the entire NPPF, taken collectively which constitute the definition of sustainable development. The proposed development at South Marston and Rowborough accords with this definition by establishing a development that supports employment, innovation and growth, will establish a vibrant and healthy community through a mix of housing and facilities that reflect the community's need and by protecting and enhancing the natural environment through integration of existing habitats into the wider green infrastructure network and through the use of renewable energy technologies.

4.5 The NPPF provides 12 core planning principles that should underpin plan making and decision taking. Those of relevance to the South Marston and Rowborough proposals are summarised below, alongside a commentary of the development's conformity with them.

Core Planning Principle	**Conformity of Scheme**
Plan-led system with up to date local plans setting out a positive vision	There is no up to date adopted Local Plan. The site is allocated for development within the emerging Local Plan. The application scheme delivers a major residential led urban extension in accordance with the emerging policy NC3 and RA3.
Sustainable economic development to deliver homes, businesses, infrastructure and local places that are needed, based on an assessment of local need.	The potential benefits of development east of Swindon, comprising an expansion of South Marston and development at Rowborough, are recognised by the emerging Local Plan and its evidence base. The scheme has the potential to deliver a substantial proportion of Swindon's housing requirement supported by local community facilities. As such it will also have a major positive effect on economic development and housing objectives within the Borough.
High quality design and amenity	The applicant is committed to the creation of a desirable new community that reflects South Marston's vernacular and makes use of local building materials as appropriate and to create walkable residential neighbourhoods around distinct character areas.
Take account of the different roles and character of different areas including promoting the vitality of main urban areas and recognising the intrinsic character and beauty of the countryside.	The proposals aim to complement and not compete with the varied retail and service offer within Swindon town centre. The new population will support town centre facilities and the new offer at the NEV district centre. The development layout and structure as a whole has been influenced by the landscape context and topographical

	features of the site. The arrangement of land parcels their associated uses, form and type of open space and route ways take account of the established physical features within the site.
Support the transition to a low carbon future.	The scheme takes full account of potential flood risk though the provision of a series of sustainable urban drainage systems and will incorporate a range of measures to support the principles of sustainable development, including to maximise the potential for walking, cycling and public transport and thereby to minimise the development's carbon footprint.
Contribute to conserving and enhancing the natural environment and reducing pollution	The site is an emerging allocation in the Local Plan by virtue of its proximity and relationship with Swindon. There are no high level constraints to the development of the site. The development will respect the local topography and enhance the natural environment where possible.
Promote mixed use developments	The best use will be made of the land available, through the provision of a mix of housing, local retail and employment uses, education and community uses in a sustainable urban extension.
Manage growth to make the fullest use of sustainable modes of transport and focus development in sustainable locations	The scheme will encourage the use of sustainable transport in the form of public transport, walking and cycling through the provision of additional services and direct routes to the centre. The site is immediately contiguous with the existing urban area and benefits from good connections to the wider NEV development. The Site will also be well connected to central services and

	facilities.
Improve health, social and cultural well being and delivery community and cultural facilities to serve local need.	A new community will be created east of Swindon that will be well served by a range of health and community facilities both within the NEV District centre and the centre(s) proposed at Rowborough. These could include a health centre, sheltered housing and community facilities. The proposed primary school at Rowborough and the expanded school at South Marston will be important community focuses.

4.6 The NPPF details specific policy relating to 13 key themes. The following paragraphs assess the development against those themes that are relevant.

Building a Strong Competitive Economy

4.7 In accordance with the Government's commitment to securing economic growth, the proposed development supports a strong, competitive economy in Swindon. The Government recognises that building competitive economies is a much about removing barriers to growth, such as local housing need, as it is providing new employment land. The application proposes 2,380 homes, as part of the planned growth at Swindon and will seek to address the current potential barrier to investment in the area by delivering much needed, quality new homes.

4.8 Furthermore, through the provision of a mix of land uses within the Neighbourhood Mixed Use Centres at Rowborough, a small element of both retail and commercial employment will be provided which will encourage a local economy. Chapter 4 of the ES sets out the significant beneficial impacts the proposed development will have on the local economy.

4.9 The development as a whole will establish a new population (not forgetting that some of the population will have relocated from other parts of Swindon) that will help to support the retail and business elements proposed at the District Centre within the New Eastern Villages and within Swindon town centre. The economy will be supported by the increased expenditure on goods, supplies and services resulting from the new population.

4.10 The area is close to major employment opportunities, including South Marston Park, Honda, Keypoint and Dorcan. Paragraph 5.60 of the Local Plan confirms that proximity to such large scale employment and opportunities to develop synergies with them was a key aspect in identifying the area to the east of Swindon for development.

Ensuring the Vitality of Town Centres

4.11 The NPPF promotes competitive town centre environments and recognises town centres as the heart of their communities. The emerging Local Plan acknowledges the poor performance of Swindon town centre, specifically in terms of retail and office offer. The development at South Marston and Rowborough is not of sufficient scale or size to compete with or compromise the growth and regeneration objectives of the Swindon Town Centre. A modest quantum of A1 class uses (up to 2,500 square metres) is proposed will provide small scale retailing to serve only the day to day needs of the development and to complement the proposed district centre at the NEV. The new population will still turn to Swindon town centre for its comparison shopping and to access the range of leisure facilities that will not be provided on the site.

4.12 In accordance with paragraph 26 of the NPPF, as the proposed retail floorspace is limited to 2,500 sqm and the development will be allocated within the emerging Local Plan, a Retail Impact Assessment is not required in support of the application.

Promoting Sustainable Transport

4.13 The proposed development adopts the approach to transport advocated in the NPPF that people should be given a real choice about how they travel with a transport system balanced in favour of sustainable transport modes. This will be achieved at through the re-routing of existing bus services into the site, providing links to connections to key locations such as the Local Centre, the District Centre at the NEV and Swindon town centre. Development comprises a series of walkable residential neighbourhoods and the provision of footways and cycle routes throughout the scheme endorse walking and cycling as realistic options to move around the site. A Travel Plan will highlight opportunities for sustainable travel for all businesses and new homes. The detailed Transport Assessment submitted in support of the application outlines the range of sustainable transport measures proposed, alongside the modal shift predicted.

4.14 The mix of uses on the site will further enhance the sustainability of the site, encouraging people to minimise their journey lengths for employment, education, leisure and so on. Residents will have the opportunity to work within walking distance of their new homes and key facilities such as the primary school and mixed use centre(s) are located to ensure good accessibility and maximise opportunities for walking and cycling and encourage linked trips.

Delivering a Wide Choice of High Quality Homes

4.15 The proposed development delivers up to 2,380 dwellings of the total planned requirement of 22,000 to 2026. This equates to 10% of the overall requirement for the plan period and therefore is considered to significantly boost the supply of housing in Swindon. The exact mix of housing types, sizes and tenures will be refined at reserved matters stage in accordance with established patterns of housing need at the time, but is likely to include a range of housing including significant elements of family housing.

4.16 Paragraph 49 of the NPPF notes that housing applications should be considered in the context of the presumption in favour of development. The Planning Statement demonstrates how the development can be defined as sustainable by delivering a scheme that is sensitive to the environment, supports economic growth and establishes a socially robust new community.

4.17 A proportion of dwellings will be of an affordable tenure providing for those in housing need. The precise percentage and tenure mix of affordable housing will be negotiated with SBC as part of the wider S106 discussions.

4.18 Paragraph 52 of the NPPF, acknowledges that the supply of new homes can sometimes be best achieved through planning for larger scale development such as extensions to towns that follow the principles of Garden Cities. The principle of the NEV as a series of well connected development islands that balance the need to address landscape setting with provision of easily accessible routes for public transport, pedestrians, cyclists and cars generally accords with such garden city principles.

Requiring Good Design

4.19 In accordance with the NPPF, the development recognises the importance of good design. The Design and Access Statement demonstrates the high quality design approach employed in the development and the ability to establish a strong sense of place and identity for its residents.

4.20 The requirement to preserve the identity and setting of South Marston Village in a manner as set out in the draft South Marston SPD and the constraints placed on the development due to the flooding extent of the tributary of the River Cole and the South Marston Brook provide opportunities to embed the scheme within its landscape context.

4.21 The principles enshrined in the Design and Access Statement will be taken forward at reserved matters stage for each phase of development.

Promoting Healthy Communities

4.22 The NPPF recognises the role of good planning in the promotion of healthy communities. The proposed development at South Marston and Rowborough adopts this approach, evidenced through its design rationale, land uses and arrangement of land parcels.

4.23 The creation of a 'neighbourhood hub' at Rowborough will establish a natural community centre and meeting place for different members of the community, providing a focus for residents through the co-location of community facilities including a new primary school and local retail as well as an important point of arrival into Rowborough.

4.24 Primary schools help foster feelings of belonging to a new community and provide opportunities to create a sense of local identity. Furthermore, they provide venues and opportunities for further community interaction such as meeting places.

4.25 Development at South Marston will promote a complementary relationship with proposals to expand village facilities in and adjacent to the existing primary school to accommodate the needs of existing and future residents. This is achieved by locating new formal sports and recreation facilities at the heart of the expanded South Marston and providing the flexibility to accommodate built

community/recreation facilities adjacent to the existing Parish Council facilities and land, should that be appropriate.

4.26 Introducing a wide mix of uses within the development ensures activity throughout the day and evening, which in turn helps to increase indirect surveillance which will help reduce existing and perceived levels of crime. As part of the detailed design it is envisaged that the development will make use of well designed security features, including active frontages and overlooked spaces.

4.27 The network of footpaths, cycle routes and green infrastructure incorporating formal and informal open space will encourage activity and healthy lifestyles.

Meeting the Challenge of Climate Change and Flooding

4.28 The NPPF notes that reductions in greenhouse gas emissions and resilience to climate change can be encouraged through good planning. Development at South Marston and Rowborough is planned to meet Code for Sustainable Homes Level 3. The Sustainability Reports submitted with the outline application details the ways in which this may be achieved.

4.29 The NPPF requires that development should be directed away from areas at highest risk of flooding. As the site is over 1 hectare in size, a Flood Risk Assessment forms part of the application documentation and concludes that the application site is suitable for the proposed development in the context of the NPPF sequential test.

4.30 A range of sustainable urban drainage solutions will be incorporated into both the built and green environments. SuDS (Sustainable Drainage Systems) will be implemented in order to reduce flood risk, minimise pollution and provide landscape and wildlife benefits. Attenuation SuDS will be required to manage surface water runoff to a maximum of current rates. The drainage strategy set out in the FRA describes a strategy which will result in rates of runoff being reduced to levels significantly below existing runoff rates and will therefore result in a significant local benefit.

Conserving and Enhancing the Natural Environment

4.31 The NPPF places an emphasis on protecting valued landscapes, minimising impacts on biodiversity and preventing unacceptable levels of pollution, and on mitigating impacts where these occur. The application site plays host to a number of wildlife

habitats and protected species, the ecological value of which have been assessed as part of the Environmental Statement. This process has allowed a master plan to be developed that retains key areas of ecological value, conserving them as areas or corridors of new greenspace.

4.32 These areas make up an important and integral part of the illustrative masterplan proposals and the GI framework for the site. The green infrastructure will establish connectivity between larger areas of retained habitat, providing wildlife corridors that encourage species movement. 74% of the application site is classified as grade 3b, and therefore not considered to be the 'best and most versatile' agricultural land and therefore are appropriate for the proposed development, in light of the substantial economic and social benefits that it will bring.

Conserving and Enhancing the Historic Environment

4.33 The NPPF recognises the contribution that heritage assets make to our knowledge and understanding of the past and the desirability of new development to make a positive contribution to local character and distinctiveness. The application site includes heritage assets, none of which are designated. There are no Conservation Areas, Registered Parks or Gardens, or Scheduled Monuments located within the site.

4.34 Within this context, desk based assessments have been carried out using the most recent data obtained from the Historic Environment Record. Several phases of geophysical surveys have also been undertaken within the site in order to clarify any issues raised arising through the desk based assessment. This has focused on the area of archaeology identified in the Swindon Local Plan south west of South Marston, and identified on the Proposals Map within the Pre-submission Local Plan.

4.35 The potential effects on heritage assets have been considered at the masterplanning stage. The Proposed Development has been designed to enable the preservation *in situ* of the majority of the area interpreted as a late prehistoric/Roman settlement between Manor and South Marston Farms. Mitigation of impacts on such non-designated heritage assets will comprise archaeological evaluation, and where necessary and/or appropriate, excavation and recording of any archaeological remains.

4.36 The ES reports that the degree of change in the settings of the listed buildings beyond the site does not materially affect their significance.

Regional Policy

4.37 Regional Planning Guidance 10 (*RPG10*) (2001) used to set out the Government's regional planning strategy for the South West up to 2016 and beyond. The introduction of the *Planning and Compulsory Purchase Act* 2004 resulted in *RPG10* becoming the Regional Spatial Strategy (RSS) for the South West and part of the statutory development plan.

4.38 Section 109 of the Localism Act, which received Royal Assent in November 2011, gave the Secretary of State the power to revoke Regional Strategies (RS), and on 20 May 2013, the RSS for the South West was revoked.

4.39 A new RSS had been in preparation, reviewing and rolling forward *RPG10* to an end date of 2026. The South West Regional Assembly submitted a draft of that new RSS to the Secretary of State in April 2006 and its Public Examination ran from April until July 2007. The Secretary of State's Proposed Changes to the draft version were published in 2008. This new RSS was not progressed to adoption.

Local Policy

Swindon Borough Local Plan 2011 (2006)

4.40 The Swindon Borough Local Plan was adopted in 2006 and sets out Swindon Borough Council's polices and proposals for development and land use for a plan period up until 2011. In 2007, the Secretary of State directed that certain policies are 'saved', until replaced by Local Development Framework Policies.

4.41 The strategic development area referred to as the New Eastern Villages within which this Proposed Development sits, is not recognised within the 'saved' local plan policies. As such any relevant development plan policies offer general policy provisions and do not contain any site specific policy detail. The principles for development (albeit now out of date) which are enshrined within the proposed development of Rowborough and South Marston include: standards of design (policy D7); delivering a range of community and supporting infrastructure (policy D8); making efficient use of land (policy D9); protecting and enhancing the character and

quality of the environment (policy ENV10); protection of the flood plain and implementation of SuDS (ENV23) and encouraging non-car modes of transport (T1 and T2).

4.42 In summary, the application proposals are broadly in accordance with the general principles for development established by the Local Plan insofar as they are up to date and consistent with the NPPF. The overall spatial strategy and level of growth for Swindon, whilst saved until the Local Plan is adopted, is out of date and will be replaced by a more ambitious growth strategy as set out in the Draft Swindon Borough Local Plan 2026 in due course.

Swindon Borough Local Plan 2026: Submission Document (2013)

4.43 The Swindon Borough Local Plan (2026) provides the policy framework to deliver sustainable growth in Swindon to 2026 and beyond. The 'submission' draft (June 2013), was submitted to the Secretary of State on 28th June 2013. Although the document does not constitute part of the adopted development for Swindon, both the document itself and its evidence base are material considerations in the determination of this outline application. The weight to be attached to individual policies within the plan is based on their consistency with the NPPF.

4.44 The emerging Swindon Local Plan 2026 sets out three high level strategic development priorities, which guide the Local Plan's Strategic Objectives, these are:

- Deliver growth that is balanced and sustainable, and provide the necessary infrastructure, while addressing impacts of climate change;
- Deliver regeneration in a way that meets the needs of Swindon's future, but conserves and enhances the best of the past; and
- Recognise the important role of green infrastructure to enhance the quality of life for existing and future residents.

4.45 Policy SD1 sets out a clear statement of the presumption in favour of sustainable development, reflecting the position taken by the NPPF, as the overarching principle that governs all development proposals, which include: high quality design, promotion of health, safe and inclusive communities; respect, conservation and enhancement of the natural, built and historic environments; provision of accessibility for walking, cycling and/or public transport and use of land and resources in an efficient and sustainable way.

4.46 Policy SD3 provides a framework within which the principle of sustainable development can be followed throughout the development management process, and encouraging a partnership approach between the LPA, developers, stakeholders and service providers. The policy also refers to the requirement for Supplementary Planning Documents to be adopted for the NEV (including Rowborough) and separately for South Marston, to provide additional guidance on the type and quality of development for the area and to provide the detail on phasing, infrastructure and any mitigation required by the proposed development.

4.47 The Borough Council approved two draft Supplementary Planning Documents (SPDs), "Eastern Villages" and "South Marston" both June 2013 for public consultation. The SPDs contain a Vision for the development to which they relate, and establish a set of guiding development principles to help realise the vision. The Design and Access Statement sets out the Vision and guiding principles for both SPD's and demonstrates how the application proposals for Rowborough and South Marston have been drawn up having close regard to the Vision and principles established through the draft Local Plan and draft SPDs for the Eastern Villages and South Marston.

4.48 The Spatial Strategy for Swindon is set out in Policy SD2, defining the quantum of growth within the Borough over the plan period up to 2026, of 22,000 dwellings and 119.5 hectares of employment (B-class) land. The policy allocates a number of strategic urban extensions to the east of Swindon, including the NEV, to accommodate about 6,000 dwellings and 40 hectares of employment, Rowborough, to accommodate about 1,500 dwellings and South Marston village to accommodate 500 greenfield dwellings.

4.49 Policy NC3 provides the policy basis for a mixed-use development on land east of the A419, known as the New Eastern Villages – including Rowborough and South Marston Village Expansion, comprising a series of new district villages and an expanded South Marston Village. Specific provisions include delivery of: approximately 8,000 dwellings; 40 hectares of B class employment land; 12,000 sqm of retail floorspace to be distributed across the District Centre and a network of Local Centres and within the expanded South Marston; a minimum of 8 forms of entry of secondary and primary provision; health care facility; sports and leisure facilities; community facilities; sustainable transport links to include a number of highway improvements; green infrastructure network; and safeguarded land for a fire station.

4.50 Policy RA3 also provides a policy basis for the expansion of South Marston Village, identifying a number of site specific development principles to ensure new development respects the character of the existing village and prevents coalescence with Swindon and the other proposed New Eastern villages. Specific principles include housing at an average density of 30 dwellings per hectare and affordable housing at no more than 20%; community, recreation facilities and retail provision of an appropriate scale, as part of the village centre; an extended recreation ground; protection of historical landscape features, archaeological assets and existing green infrastructure; new road connection between Thornhill Road and Old Vicarage Lane; provision of traffic management and sustainable transport measures to minimise traffic in the existing settlements.

4.51 The ***Eastern Villages Draft Supplementary Planning Document (2013)*** provides further guidance for and direction to the delivery of development in the NEV, in accordance with Policy NC3 of the emerging Swindon Borough Local Plan 2026. It sets the framework for delivery of economic growth through a mixed use development and guides the timely implementation of required infrastructure and transport objectives.

4.52 The document sets out the Eastern Villages Vision, which is to create well-designed places where people want to live, work and spend time. It seeks to secure development that will:

- be a high quality, sustainable development with strategic infrastructure that benefits Swindon as a whole;
- sensitively and positively respond to the existing landscape context, natural and historic assets and the character and identity of the surrounding villages as well as enhancing biodiversity and green infrastructure;
- comprise new distinct villages with individual identities and characters linked together by green spaces that integrate with the existing urban area and wider landscape setting;
- provide the facilities and services required for the new communities and opportunities for existing communities to benefit from the development, and
- form a new eastern gateway to Swindon that improves the image of the Town and maximises benefits to the wider economy including connections to the Town Centre.

4.53 The document sets out the framework for delivery of economic growth and guides the timely implementation of required infrastructure and transport objectives.

Chapter 6 refers to delivery and strategic phasing which seeks to provide the confidence to decision makers regarding the provision of necessary services and facilities. The SPD seeks that planning applications adhere to the phasing strategy as set out in Figure 12. The phasing plan is not prescriptive, but adopts a broad direction and approach, which sets out three separate phases of development and identifies the infrastructure requirements associated with each phase. Phase 1 of the NEV includes land to the north of the A420, which comprises the Site.

4.54 The ***South Marston Draft Supplementary Planning Document (2013)*** provides a detailed planning framework setting out the requirements and aspirations for development at South Marston, including addressing existing traffic, land use and community issues. It has been prepared in partnership with South Marston Parish Council. It therefore expands upon Policy RA3.

4.55 Policy RA3 of the emerging Swindon Borough Local Plan 2026 sets out the specific requirements at South Marston Village, and proposes 500 dwellings as part of the overall requirement for 8,000 dwellings in the New Eastern Villages as allocated within emerging Policy NC3. The SPD considers the constraints and opportunities for residential development in South Marston more closely and identifies opportunities for some 580 dwellings on greenfield sites in total.

4.56 The SPD sets out a number of key development principles which seek to:

- maintain and visually enhance the separation of the village from the Swindon urban area, and any future development, by providing a gap of open amenity space;
- maintain an open and rural feel by providing public open space accessible to the existing and future residents with green corridors that safeguard views from the village to the North Wessex Downs Area of Natural Beauty, the Church and surrounding countryside;
- enhance a sense of belonging to a single village by providing modern facilities with adequate shared parking;
- ensure integrated safe and convenient road, footpath and cycleway layout that embraces the 'Walkable Neighbourhood' concept;
- control both traffic volume and speed, particularly at Pound Corner;
- maintain the village character by adopting a design-led approach and reflecting the existing overall mix of housing types, with a bias towards detached family homes and distinctive design aesthetic, an average housing density of 30 dwellings per hectare and 20% affordable housing.

4.57 This planning application seeks outline planning permission for the strategic urban extension, which is in conformity with the emerging site specific policies NC3 and RA3 and with the emerging SPDs.

4.58 Specifically the application proposals:

- Deliver a first phase of development of the NEV, of a scale and density that is consistent with the emerging plan policies;
- Deliver a first phase of transport improvements consistent with the transport strategy for the whole of the NEV;
- Include an extensive green infrastructure network in their own right that is designed to be entirely complementary to subsequent GI proposals for those parts of the NEV south of the A420 to be brought forward in due course;
- Include localised provision for retail and employment uses consistent with the objectives for Rowborough and complementary to the policy focus on the District centre and the employment areas south of the A420;
- Include provision for one of the three new 2FE primary schools proposed for the NEV and proposals consistent with the expansion of the existing primary school at South Marston;
- Include proposals that ensure that there is no increase in flood risk and full account is taken of the biodiversity and historic character of the site;
- Support the aspirations for a community focus at the heart of the expanded South Marston including the provision of an extended recreation ground to include the field to the south west of the existing recreation ground.

4.59 The provision for some 1,800 dwellings at Rowborough is consistent with the expectation in Policy NC3 that “about 1500 dwellings” be provided at Rowborough, the “about” being a recognition that actual level of provision should reflect the outcome of a detailed master planning process that has now taken place. The provision of 300 “additional” dwellings is entirely consistent with the design principles set out in the emerging planning policy and in the SPD and accords for instance with the provisions in relation to density and open space. It has been fully assessed in the ES accompanying the application and been demonstrated to result in no additional significant detrimental effects.

4.60 Indeed the provision of an additional 300 dwellings ensures that sustainability of the development is enhanced further, capitalising on the capacity of the primary school, enhancing the use made and viability of local services and facilities and public

transport and increasing the numbers of new homes that may be provided to meet objectively assessed needs in a highly sustainable manner.

4.61 The provision of 580 dwellings in South Marston has similarly emerged from a careful master planning process and an assessment of any negative impacts of the proposals. The proposals are consistent with the more detailed articulation of the advice in policy RA3 that appears in the South Marston SPD. The development parcels proposed are generally consistent, as are the densities of development and the provision made to respect the character and identity of the existing village. The South Marston SPD, recognises that there is some flexibility in the Local Plan policy of 500 dwellings by providing for some 580 dwellings on greenfield sites in the expanded village. The application proposals are consistent with this.

4.62 The following general policies are relevant to the development at Rowborough and South Marston, accepting that the weight to be attached to them will reflect the status of the Local Plan:

Policy DE1: High Quality Design; Policy DE2: Sustainable Construction

Policy DE1 requires standards of design which respond to sustainable development and place making principles. Proposals are assessed against context and character; layout, form and function; amenity and quality of the public realm. Policy DE 2 sets out a requirement for the adoption of sustainable methods of construction through the layout and design of the site and orientation and design of buildings.

4.63 The Design and Access Statement outlines how the development has been designed to accord with these criteria and will achieve high standards of design.

Policy HA1: Mix, Types and Density

Policy HA1 sets out a requirement for housing developments to be design-led, ensuring that densities, house types and sizes respect the character of the surrounding area and ensuring a good mix of housing to meet local needs as identified within the Swindon Strategic Housing Market Assessment and in line with the Swindon Borough Housing Strategy.

Policy HA2: Affordable Housing

Policy HA2 sets a requirement for developments of 15 homes or more, or on sites larger than 0.5 hectares and subject to economic viability assessment to provide an affordable housing target of 30% affordable homes on site, and where it can be robustly demonstrated as appropriate, a proportionate contribution to be provided

towards affordable homes off-site where on-site provision is not suitable. Where affordable homes are provided on site, they should be integrated within the design and layout of a development with a mix and tenure that reflects current need. Separately 20% is sought at South Marston.

4.64 The application proposals accommodate up to 2,380 new dwellings as part of the wider allocation for the Swindon New Eastern Villages, some 1,800 dwellings at Rowborough and some 580 dwellings at South Marston. Provision will be made for affordable housing as part of the proposals. Whilst this application is submitted in outline form only and therefore does not specify the exact mix of dwellings sizes and tenures, a proportion and tenure mix of affordable housing will be negotiated as part of the S106 agreement. The mix of dwellings will be fixed through subsequent reserved matters pursuant to any outline planning permission. The emphasis will include family housing but other smaller units will also be provided, including the potential for an element of sheltered housing.

4.65 The proposals will include up to 30% affordable housing at Rowborough and up to 20% affordable housing at South Marston. The amount and mix of affordable housing will be the subject of negotiation and discussions with SBC and agreed in the light of the wider requirement for infrastructure delivery and other planning and design objectives.

Policy TR1: Sustainable Transport Networks; Policy TR2: Transport and Development.

Policy TR1 supports a reliable and efficient transport network; improvements to safety, security and healthy lifestyles; equality of opportunity to access services and facilities and reduction of emissions. Policy TR2 requires new development to be located and designed to reduce the need to travel and encourage the use of sustainable transport alternatives. Access must be appropriate to the scale, type and location without detriment to highway safety and local amenity and retain or where not possible replace existing rights of way. Policy TR2 requires submission of Transport Assessments to support development that is likely to have a significant transport and related environmental impact. The policy also requires parking provision to include secure cycle and motorcycle parking in line with the Council's adopted parking standards.

4.66 As outlined earlier in this statement, the proposed development has adopted a positive approach to sustainable travel and will ensure that the future population has a genuine choice of sustainable modes of transport. The TA that accompanies the

application demonstrates that subject to mitigation measures, the development will not generate any significant transport impacts.

Policy IN1: Infrastructure Provision

Policy IN1 sets out a requirement for development to address and provide for the new infrastructure made necessary by development.

4.67 The application proposals accord with this requirement through delivery of the following:

- highway enhancements;
- contributions to off site junction improvements;
- a proportion of affordable housing;
- a primary school;
- land and contributions as appropriate for a sports provision and community facilities; and
- green infrastructure including formal pitches, informal open space and landscape areas and children's play spaces; and
- sustainable urban drainage systems including balancing ponds and drainage channels.

Policy CM1: Education

Policy CM1 sets out a requirement to address the school place provision to accommodate the levels of growth as set out in the Local Plan.

4.68 The proposals include a site of approximately 2.2 hectares to accommodate a two form entry (420-place) school at Rowborough and a safeguarded area of land to accommodate an area of recreation and community facility, if required, adjacent to expanded school and existing recreation ground at South Marston. This approach ensures the development will adequately cater for the number of primary school children it generates, with potential sufficient surplus capacity to help reduce pressure on existing schools in north/east Swindon and surrounding areas.

CM2: Active, Healthy and Safe Lifestyles

Policy CM2 promotes active, healthy and safe lifestyles by increasing opportunities to walk and cycle and encouraging more sustainable travel choices, increasing access to green spaces, designing out crime and designing in health and provision of open space, leisure and recreation facilities, and community facilities.

4.69 The development is laid out as series of connected walkable residential neighbourhoods around distinct character areas. Each neighbourhood benefits from access to key areas of formal and informal open space. By introducing a wide mix of new uses, the site will be used both during the day and at night. This will increase indirect surveillance which will help reduce existing and perceived levels of crime. As part of the detailed design it is envisaged that the development will make use of well designed security features, including active frontages and overlooking of open space. The detailed design through subsequent reserved matters will address Secure by Design principles.

Policy CM3: Integrating Facilities and Delivering Services

Policy CM3 promotes local and integrated service delivery through flexible multi-use buildings in public and community ownership, co-location of sports centres and playing pitches with schools, including an agreement to use schools and other public buildings for community use. Key aspirations for both schools is that their design and management encourage their use as community facilities to be used by the local community 'out of school' hours for leisure/ social activities.

4.70 The application provides for and will seek to deliver a Neighbourhood centre located adjacent to the primary school to generate a focus of activity for Rowborough, accessibly located on the main street to include appropriate space for bus stops, parking and cycle storage. This central location will maximise community use and interaction.

4.71 The playing fields at South Marston are located at the northern edge of the new development, at the heart of the expanded South Marston, adjacent to the primary school and its recreation ground. There will be opportunities for shared use of recreation facilities with the school, which would further enhance the value of the provision made.

Policy EN1: Green Infrastructure Network.

Policy EN1 seeks to protect and enhance green infrastructure and assets in accordance with those identified at Appendix 5 of the Local Plan and provides for the protection and integration of visually or ecologically important existing trees, hedges and woodlands. Development should also design in green infrastructure with existing green corridors identified on the Proposals Maps to maximise connections and multifunctionality.

4.72 A generous landscape and open space Green Infrastructure Framework is a key part of the proposals for South Marston and Rowborough. The *Green Infrastructure Strategy-Guiding Principles*, which supports the application illustrates some 70ha or over 40% of the site is included as GI with retained habitats (valued hedges, mature trees, brook, ponds, rights of way), habitat creation (broadleaved woodland, hedgerows, wetland habitats), and accessible greenspace (sports pitches, equipped play provision, informal recreation, walking and cycling routes). This framework provides a clear separation from South Marston and promotes linkages to Nightingale Wood to the east.

Policy EN3: Open Space.
Policy EN3 requires development to provide or contribute towards public open space at a standard of 3.2 Ha per 1000 of the population.

4.73 The development provides a considerable amount of green space for play, recreation and walking/cycling of a type and distribution in accordance with, and indeed in excess of the standards as set out in Appendix 4 of the draft Local Plan.

Policy EN4: Biodiversity and Geodiversity
Policy EN4 requires development to avoid direct and indirect negative impacts upon biodiversity and geodiversity sites.

4.74 The application site contains no designated areas of Biodiversity and Geodiversity interest. The proposed layout has taken into account habitats and features of value at an early stage and seeks to retain and enhance ecological features of value, as far as practicable, through the Green Infrastructure (GI) framework.

Policy EN5: Landscape Character and Historic Landscape
Policy EN5 requires the intrinsic character, diversity and local distinctiveness of landscape to be protected, conserved and enhanced and designed sympathetically to the surrounding environment.

4.75 The Design and Access Statement demonstrates the evolution of the proposals, the development layout and structure as a whole has been influenced by the landscape context and topographical features of the site. A detailed landscape and visual impact assessment forms part of the Environmental Statement and demonstrates that the scheme has been designed to fit sensitively within its wider landscape.

Policy EN6: Flood Risk

Policy EN6 requires the management of flood risk through directing new development to areas with the lowest probability of flooding in accordance with the Sequential Test as defined within the NPPF; ensuring that new development addresses the effective management of flood risk; and for development to incorporate sustainable drainage systems.

4.76 As outlined earlier in this statement, the Flood Risk Assessment (FRA) concludes that the application site is suitable for the proposed development in the context of the NPPF sequential test, and no built development other than essential infrastructure is located within the River Cole and/or South Marston Brook floodplain.

4.77 The drainage strategy is set out in the FRA within the Environmental Statement, which accompanies the application and identifies no prohibitive engineering constraints in developing the proposed site for residential use and refers to a range of sustainable urban drainage solutions will be incorporated into both the built and green environments. The proposals will result in a substantive improvement in existing runoff rates from the site.

Policy EN10: Historic Environment & Heritage Assets

Policy EN10 requires the setting and significance of historic environment assets to be sustained and enhanced.

4.78 The potential effects on heritage assets have been considered at the masterplanning stage. The layout of the development is sympathetic to the setting of the four listed buildings, and seeks to negate any impact that would materially compromise their significance.

4.79 The Proposed Development has been designed to enable the preservation *in situ* of the majority of the area interpreted as a late prehistoric/Roman settlement between Manor and South Marston Farms. Mitigation of impacts on such non-designated heritage assets is proposed where necessary.

4.80 In summary, and notwithstanding the limitations in the weight to be attached to the policies, the application proposals are in conformity with the emerging Local Plan policies, both relating to the site itself, those being Policy NC3 and RA3 and those that apply to development more generally, as referred to above.

Other Local Supplementary Guidance

4.81 The following paragraphs set out in outline other aspects of local policy considered in the development of the application proposals. In general terms only very limited weight should be accorded to each of the documents referred to, such documents being prepared to support the Swindon Local Plan which is itself out of date, not least as a result of the subsequent publication of the NPPF.

Open Space and New Housing Development SPG (August 2004)

4.82 This SPD contains advice for developers on the requirements of open space within new housing developments, how they will be assessed and calculated, to include financial off-site contributions and the delivery and maintenance of new open spaces.

Landscape Character Areas SPG (September 2004)

4.83 This SPG determines the different landscape character areas in Swindon Borough and identifies the specific characteristics that are unique to each such area, highlighting the issues to be addressed when considering development proposals. The Landscape Character Areas are defined within Local Plan Policy ENV10.

4.84 The site lies within the Midvale Ridge, a Landscape Character Area that is typified by a rolling landform of valleys, ridge, hill and plateau tops, with the ridge dissected by the south/north valleys of the Rivers Ray and Cole. Fields are generally moderate in size with smaller fields around South Marston, and are generally enclosed by hedgerows and woodland. Important settlements occupy the highest hilltops (Blunsdon and Highworth) and smaller villages lie within the valleys.

Sustainable Building Design and Construction SPD (December 2007)

4.85 The document provides advice on sustainable building design and construction and amplifies policy DS6 (design and amenity) of the adopted Swindon Local Plan.

Noise and Residential Development SPG (August 2004)

4.86 This SPG provided guidance on ways to protect against noise from within the construction, design and layout of dwellings.

Tree Protection on Development Sites (December 2004)

4.87 This SPG provides guidance in respect of the preservation of appropriate trees within development schemes.

5.0 MERITS OF THE PROPOSALS

5.1 The Government's commitment to delivery of sustainable development is now enshrined in the Localism Act and National Planning Policy Framework. The National Planning Policy Framework provides a clear basis for the decision taking framework, setting out in paragraph 14 the approach to the determination of planning applications the centrepiece of which is the presumption in favour of Sustainable Development. In the absence of an up to date development plan policy, permission is to be granted unless there are adverse impacts that demonstrably and significantly outweigh the benefits of development.

5.2 In the context of a time-expired or out of date local plan consideration needs to be given to the balance of adverse impacts against benefits assessed against the policies of the NPPF as a whole.

5.3 It is the policies in the entire NPPF, taken collectively which constitute the definition of sustainable development. The proposed development at South Marston and Rowborough accords with this definition by establishing a development that supports employment, innovation and growth, will establish a vibrant and healthy community through a mix of housing and facilities that reflect the community's need and by protecting and enhancing the natural environment through integration of existing valuable habitats and landscape elements into the wider green infrastructure network.

5.4 Drawing together the merits of the proposal in terms of its location; supportive policy framework; delivery of housing; provision of infrastructure and design approach, there are substantial and weighty factors that weigh in favour of the application. The scheme demonstrates provision of a mix of uses and new homes to meet local needs alongside supporting infrastructure that will ensure the development does not negatively impact upon the town, nor prejudice the delivery of the subsequent phases of the New Eastern villages.

Location

5.5 The principle of an eastern expansion of Swindon is deeply rooted, reflecting a long standing and independently endorsed evidence base which fully replicates best practice in planning robust policy framework for the expansion of South Marston and Rowborough and the delivery of the New Eastern villages as a whole. The evidence base clearly sets out a presumption that east is the most appropriate direction for

Swindon to develop into the longer term and that large scale expansion of the town in that direction is preferable to more dispersed growth around its periphery.

5.6 The area is close to major employment opportunities, including South Marston Park, Honda, Keypoint and Dorcan. It is relatively unconstrained in landscape and ecological terms. It is well connected to Swindon town centre and to existing communities in the eastern part of the town, whose regeneration its development can assist. Proximity to such large scale employment and opportunities to develop synergies with them was a key aspect in identifying the area to the east of Swindon for development.

5.7 The site offers a readily available site, which is deliverable, benefitting from a sustainable location and no significant site constraints. This is accepted in the emerging Local Plan policy and confirmed through the material that accompanies this planning application.

Supportive Policy Framework

5.8 A strategic approach to housing delivery is articulated within the NPPF, recognising the opportunities it provides in promoting sustainable development. Paragraph 52 of the Framework states "*new homes can sometimes be best achieved through planning for larger scale development, such as new settlements or extensions to existing villages and towns that follow the principles of Garden Cities".*

5.9 The consistency of the proposals across the broad range of core planning principles set out in the NPPF is described in section 4 above. The proposals accord fully with the NPPF.

5.10 Locally, Policy NC3 of the emerging Swindon Local Plan 2026, provides the policy basis for the proposals allocating land to the east of the A419, known as the *New Eastern Villages – including Rowborough and South Marston Village Expansion*, comprising a series of new district villages and an expanded South Marston Village, to deliver some 8,000 of the District's 22,000 homes throughout the plan period up to 2026.

5.11 Policy RA3 also provides a policy basis for the expansion of South Marston Village, identifying a number of site specific development principles to ensure new development respects the character of the existing village and prevents coalescence with Swindon and the NEV.

5.12 The Eastern Villages draft SPD and South Marston draft SPD provide additional guidance on the type and quality of development for the area and provide the important detail on phasing, infrastructure and mitigation. The application proposals for Rowborough and South Marston have been drawn up having close regard to the Vision and principles established through the draft Local Plan and draft SPDs as referred to above,.

5.13 In summary, the application proposals align with the recognition that east Swindon is an appropriate location for growth. The principles contained within detailed policies relating to sustainable transport, delivery of housing, education and community facilities, and open space are closely followed by the proposals.

Housing Delivery

5.14 House building has fallen dramatically in recent years having a significant detrimental impact on people's access to an affordable, decent home. The Government has recognised the urgency of the situation and through the NPPF made the case for growth and housing delivery to meet locally assessed housing need. The NPPF seeks to "boost significantly the supply of housing". The development proposals form part of a locally derived strategy of growth that delivers directly to this national agenda.

5.15 *Swindon Strategic Housing Market Assessment 2012*, reports a steady decrease in net housing completions, yet predicts that population growth will increase demands from all household types. The draft *Swindon Borough Local Plan 2026: Submission Document (2013)* seeks delivery of circa 22,000 dwellings within the Borough over the plan period up to 2026 to meet the housing needs of the local population.

5.16 The proposed development delivers up to 2,380 dwellings of the total planned requirement, equating to 10% of the overall requirement for the plan period. The 15 year build out period as set out in the housing trajectory that supports the emerging Local Plan (appendix 6), anticipates delivery at the NEV to commence within 2014/15.

5.17 It is the commitment of the HHT developers to secure the early and progressive development of the first phase of the NEV and as such it is reasonable to expect that the development programme would secure at an early stage several housebuilder outlets on site. The evidence accepted generally is that housebuilders may be relied

upon to construct some 50 dwellings per annum on any given site (i.e. approximately a dwelling each week).

5.18 Once commenced, development will take place in accordance with a clear implementation strategy, the aim of which will be to achieve strong build out rates and the delivery of infrastructure.

5.19 Confidence that a strong programme of housing completions may be achieved at the NEV is also underpinned by:

- the evidence of joint working - partnership between local authorities, local agencies and developers/ housebuilders is crucial to ensure effective and efficient delivery;
- the local site conditions which present few environmental or site remediation issues to the north of the A420;
- the involvement of a variety of house builders who have different markets (products) which will support rates of development.

5.20 As a result, the proposed development is considered to significantly boost the supply of housing in Swindon, in accordance with the aspirations of the NPPF.

5.21 The NPPF also highlights the need to deliver a wide choice of high quality homes and plan for a mix of housing based on current and future demographic trends and local needs. The proposed development would have a beneficial impact on the housing market, increasing the current housing stock and providing a mix of dwellings, to be fixed through subsequent reserved matters pursuant to any outline planning permission. Family housing but other smaller units will be provided, as identified in the SHMA.

5.22 The proposals will include up to 30% affordable housing at Rowborough and up to 20% affordable housing at South Marston. The amount and mix of affordable housing will be the subject of discussions with SBC as the proposed development advances through the planning process.

Provision of Infrastructure

5.23 The aspirations of the *East of Swindon Evidence Base Update 2011* are that development at the New Eastern Villages should take place in an orderly manner The draft Eastern Villages SPD amplifies the importance of comprehensive management and phasing. The proposals to deliver development at South Marston

and Rowborough accord with Phase 1 of the phasing strategy which requires commencement of development of the New Eastern Villages, north of the A420.

5.24 To facilitate early commencement of development, this outline planning application is supported by a comprehensive set of supporting documentation which demonstrates delivery of key infrastructure elements necessary to support the proposals, avoiding any further constraint being placed on subsequent phases, and moreover confirms the ability for early implementation of the proposals.

5.25 The scheme has been designed to be residential led with a modest provision of complementary local centre uses such as convenience retail that serve to meet only the day to day needs of its residents. The new population will remain focused on the New Eastern Villages District Centre and Swindon town centre for its primary services, leisure and comparison retail needs.

5.26 The proposals ensure the provision of necessary infrastructure will be delivered at appropriate locations, timeframes and thresholds to serve the new community. Local facilities and services are appropriate and accessible to the communities they serve and are delivered along side the housing. The scheme will facilitate the delivery of a major community benefit in the form of a primary school at Rowborough and a area of land to accommodate an area of recreation and, if required, community facility at South Marston, to meet any identified local needs.

5.27 The application demonstrates provision of the necessary infrastructure to support itself and to mitigate any impacts of development on existing communities and wider infrastructure. This approach will help to establish well-balanced and sustainable new communities, as advocated in the NPPF.

Design Approach

5.28 In accordance with the NPPF, the development recognises the importance of good design. The applicant is committed to good standards of design to create a desirable new community that reflects the best of South Marston's vernacular where appropriate and to create walkable residential neighbourhoods around distinct character areas.

5.29 South Marston Parish Council has been proactive in shaping the future of the village, identifying opportunities through a working group and effectively engaging residents. The role and function of open space, separation between the existing village, the

expansion area and Rowborough, and linkages to the countryside were important issues. The potential for flood attenuation incorporated as part of the open space network has also been raised as an important issue, as has alleviation of vehicular and pedestrian conflict through Pound Corner and in the village.

5.30 The development layout and structure as a whole has been influenced by the landscape context and topographical features of the site and by the emerging SPDs. The arrangement of land parcels their associated uses, form and type of open space and route ways seek to respond to the established physical features within the site and enhance the sustainability of the proposals.

Balance of Considerations

5.31 The application proposals have been subject to careful scrutiny first in the careful construction of an evidence base as the basis for the identification of the NEV as the most sustainable development option to accommodate objectively assessed housing needs in Swindon.

5.32 More particularly the proposals have been the subject of an ongoing environmental impact assessment process and assessment which has sought at all stages to identify any harmful impacts of the development. These are fully reported alongside the development. Such impacts are very limited and in any event capable of effective mitigation.

5.33 In conclusion therefore there are no substantial and demonstrable adverse impacts of development to offset against the substantial benefits of the proposals, let alone impacts that are of such significance as to overturn the presumption in favour of sustainable development set out in the NPPF.

6.0 PLANNING OBLIGATIONS / S106 HEADS OF TERMS

6.1 It is proposed that the landowners would enter into a Section 106 agreement with Swindon Borough Council, such an agreement being conditional upon the grant and implementation of the planning permission.

6.2 Some of the matters to be addressed in the S106 agreement are set out below in broad terms in outline and draft and are subject to discussion, negotiation, expansion and review.

DRAFT HEADS OF TERMS FOR SECTION 106 OBLIGATION

Parties:	Swindon Borough Council (SBC) Hannick Homes Limited Laing Homes Hallam Land Management Landowners
Effective Date:	The obligations are conditional upon the grant and implementation of the Planning Permission.
PLANNING OBLIGATIONS:	
Green Infrastructure and Public Open Space	To provide for Public Open Space (including pitches, play areas etc) and provide for an appropriate maintenance regime.
Affordable Housing	• Proportion of Dwellings shall be Affordable Housing • Housing type and tenure to be agreed
Education	To provide site at Rowborough for primary school and agree mechanisms for delivery of primary education to serve needs of development. To make appropriate provision for additional primary school places at South Marston for instance to assist in the delivery of the

	expansion of the existing primary school.
Transport	To carry out highway improvements to include proposed accesses into the site and to provide contributions to other off-site highway improvements.
Sustainable transport	Travel plan measures
Community facilities	To make provision as appropriate and justified for additional community facilities and/or the enhancement of existing or proposed facilities including in relation to proposals being developed in relation to South Marston on land adjacent to the application site.
Drainage	Provisions to ensure delivery of effective SuDS drainage system.

7.0 CONCLUSION

7.1 In the absence of an up to date development plan policy, the presumption in favour of sustainable development indicates that permission is to be granted unless there are adverse impacts of development that demonstrably and significantly outweigh the benefits of development.

7.2 In summary, the proposed development at South Marston and Rowborough is in direct accordance with the Government's aspirations for sustainable growth that meets local needs and establishes new, healthy communities. It accords fully with the core planning principles of NPPF.

7.3 The NPPF further emphasises the need for Local Authorities to prepare Local Plans that deliver this vision and the aspirations of the local community.

7.4 Swindon Borough Council has submitted for examination, a Local Plan that includes the application site within a wider allocation of 8,000 new dwellings as part of the strategic planned growth east of Swindon, known as the New Eastern Villages, for which the Council are committed to its early delivery.

7.5 Development at South Marston and Rowborough is to be delivered in line with the strategic phasing plan for the NEV, as set out in the draft SPD, requiring initial build-out north of the A420. The application demonstrates accordance with a requirement to provide the necessary infrastructure to support itself and to mitigate any impacts of development on existing communities. The Environmental Statement that supports the application confirms that no significant cumulative effects will arise from the proposed development in respect of its relationship to the remainder of the proposed allocation, and early implementation north of the A420 can be secured without fettering the progressive implementation of the wider infrastructure required for the for the NEV as a whole.

7.6 In conclusion and in the context of the growth agenda and the pressing national and local need for housing growth, the application proposes a major residential led urban extension capable of delivering new homes and supporting the planned growth of Swindon. There are no significant and demonstrable impacts that outweigh the benefits of granting consent. Therefore in accordance with the presumption in favour of sustainable development spelt out clearly in paragraph 14 of the NPPF, permission should be granted for the development.

Appendix 1:

Letter from Network Rail 2 October 2013

NetworkRail

Nick Duckworth
Hallam Land Management
Unit 3 Apex Court
Woodlands
Bradley Stoke
Bristol
BS32 4JT

Network Rail
3rd Floor Temple Point
Redcliffe Way
Bristol
BS1 6NL

2 October 2013

Subject to Contract

Dear Nick

Swindon East: Land to the north of the A420, South of South Marston

I write to confirm that we have agreed commercial terms in respect of the grant of the easement for the bridge under the Great Western Main Line, to the east of Swindon and that Network Rail has instructed solicitors to conclude the relevant legal agreement with Hallam Land Management.

The bridge design, construction method and timing will need to meet the standards and operational requirements of Network Rail's Outside Party Works Engineer and following its completion the road must be adopted by the Highway Auhtority.

Yours sincerely,

Peter Goodhart

Development Surveyor

David Lock Associates
Town Planning and Urban Design

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